4301

Executive Order

For the purpose of carrying into effect the provisions of section 4 of the Act of Congress approved May 31, 1924, relative to increased pay for members of the National Guard while on duty requiring them to participate regularly and frequently in aerial flights and allowance for traveling expenses incident thereto, the following regulations, effective July 1, 1922, are hereby promulgated and made applicable to officers and enlisted men of the National Guard:

1. Officers and enlisted men of the National Guard who, under regulations prescribed by the Secretary of War, are physically fit for flying, and who come within the following classes, will be considered as on duty requiring them to participate regularly and frequently in aerial flights.

a. Officers belonging to Air Service organizations of the National Guard who by applicable tables of organization are classified as pilots or observers.

b. Enlisted men belonging to Air Service organizations of the National Guard who by applicable tables of organization are classified as flight chiefs, crew chiefs, or master photographers.

c. Officers of the Medical Corps attached to Air Service organizations of the National Guard, who by applicable tables of organization are classified as flight surgeons.

d. In addition to the above, such other officers and enlisted men belonging to or attached to Air Service organizations of the National Guard as may be detailed to such duty by written orders issued by senior Air Service commander in each State: provided, that the number of additional enlisted men so detailed in any organization shall not exceed 10 per centum of the maintenance enlisted strength of such organization including attached personnel.

e. Officers and enlisted men, who, under authority of the Secretary of War are in attendance at a course of instruction in aircraft pilot duties, aircraft observer duties, or flight surgeon duties at a service school.

2. Definitions: *a.* An "aerial flight" is defined as a journey in an aircraft and such aerial flight will begin when the aircraft leaves the ground or water and will terminate when again at rest on the ground or water.

b. "Travel by air" is defined as a journey in an aircraft made by orders of competent authority and which requires one or more landings away from the starting point.

c. A "continuous journey by air" is defined as any journey performed in an aircraft under the orders of competent authority, from and return to the place of permanent station or to other final destination named in the orders, which requires one or more landings, provided that the stop, except that due to the causes set forth below, in any one locality does not exceed seventy-two hours.

d. A "necessary delay" incident to one or more of the following conditions is a delay during a continuous voyage:

(1) Unfavorable weather conditions.
(2) Necessary repairs to aerial equipment.

3. Each officer and enlisted man of the National Guard while on duty requiring him to participate regularly and frequently in aerial flights shall, unless excused therefrom by his immediate commanding officer, be required:

a. When participating in exercises or performing duties provided for by section 94, 97, or 99, National Defense Act, to make at least 10 aerial flights or be in the air a total of four hours during each complete calendar month, and during a fractional part of a calendar month to make a proportionate number of aerial flights or be in the air a proportionate period of time.

b. If a captain, lieutenant or enlisted man belonging to an organization, to make at least one aerial flight at each ordered assembly for drill and instruction at which he is in attendance.

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c. If an officer below the grade of major not belonging to an organization, or an officer above the grade of captain;

(1) During each calendar month he is in an armory drill pay status for the entire month, to make at least 4 aerial flights or be in the air a total of 96 minutes: and

(2) During each calendar month he is in an armory drill pay status for only a part of the month, to make such number of aerial flights or be in the air such period of time as bears the same ratio to four flights and 96 minutes respectively as the period such officer is in an armory drill pay status bears to the entire month.

The duty herein prescribed shall be performed at an ordered assembly or assemblies for drill and instruction.

d. The duties prescribed above shall be in addition to any other duty or duties which may be required of such officers and enlisted men while in attendance at assemblies for drill and instruction, and while participating in exercises or performing duties provided for by section 94, 97, or 99, National Defense Act.

4. *a.* An officer or enlisted man of the National Guard on duty requiring him to participate regularly and frequently in aerial flights, who, while participating in exercises or performing duties provided for by section 94, 97, or 99, National Defense Act, participates in at least 10 aerial flights or is in the air a total of four hours during a complete calendar month, shall receive an increase of 50 per centum in the pay prescribed by law for officers and enlisted men participating in exercises or performing duties provided for by sections 94, 97, and 99, National Defense Act. During a fractional part of a calendar month such officer or enlisted man shall receive such increase of pay if he participates in a proportionate number of aerial flights or is in the air a proportionate period of time.

b. A captain, lieutenant or enlisted man belonging to an Air Service organization of the National Guard on duty requiring him to participate regularly and frequently in aerial flights, who, while in attendance at an ordered assembly for drill and instruction of his organization, participates in one or more aerial flights, shall receive an increase of 50 per centum in the pay to which he is otherwise entitled for attendance at such assembly.

c. An officer below the grade of major not belonging to an organization, or an officer above the grade of captain, on duty requiring him to participate regularly and frequently in aerial flights, who, while in attendance at an ordered assembly or assemblies for drill and instruction:

(1) During a calendar month he is in an armory drill pay status for the entire month, makes at least 4 aerial flights or is in the air a total of 96 minutes; or

(2) During a calendar month he is in an armory drill pay status for only a part of the month, makes such number of aerial flights or is in the air such total period of time as bears the same ratio to 4 flights or 96 minutes, respectively, as the period such officer is in an armory drill pay status bears to the entire month;

shall receive an increase of 50 per centum in the armory drill pay to which he is otherwise entitled for such month.

5. Officers and enlisted men of the National Guard while on duty requiring them to participate regularly and frequently in aerial flights, shall, when such flying duty involves travel, receive the same allowances for traveling expenses as are or hereafter may be authorized for the Regular Army. Such allowances shall be paid only when the travel is authorized by the Secretary of War and performed under competent orders.

CALVIN COOLIDGE

THE WHITE HOUSE,
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